Ex Tempore

WILLIAM GWATA
versus
MASHONALAND TOBACCO COMPANY (PVT) LTD
and
THE SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 3, 17 & 20 February 2026

Opposed Application

N Chihota, for the Applicant
F Mahere, for the 1st Respondent
No appearance for the 2nd Respondent.

DEME J: The Applicant is seeking the confirmation of the Provisional Order granted by this court. The interim relief of the Provisional Order granted by this court is as follows:

> "1 The Supervising Attorney and the Sheriff or Deputy Sheriff shall separately prepare an inventory each of all the goods and/or documents removed by the Sheriff or Deputy Sheriff from any premises, facility or vehicle in terms of this order. The Sheriff or Deputy Sheriff shall submit a copy of his inventory to the Supervising Attorney.
> 2.In the event that any document or articles identified pursuant to paragraph 1 above exist in computer readable form, the person upon whom this Order is effected in terms of paragraph 1 shall forthwith provide the Sheriff or Deputy Sheriff with effective access to the computers with all the necessary passwords to enable the computers to be searched and cause the information to be printed out or copied so that the Sheriff or Deputy Sheriff has full access to such documents or information which shall be listed as fully possible in the Sheriff/Deputy Sheriff's inventory.
> 3.In the event that the Respondents or their agent refuses to grant the Sheriff access to computers, the Sheriff is hereby authorised to seize any such computers and to engage a computer technician to get access to the information database and to search for relevant information, make copies of same and return the computers to the Respondent.
> 4.The Sheriff/Deputy Sheriff is ordered to take possession of and to retain all the infringing machines and diagrams and any documents or articles identified by the search until ordered otherwise by the Court. Save as provided in this Order, no person shall be entitled to inspect any of the infringing products or documents or articles taken in to the possession of the Sheriff/Deputy Sheriff nor shall any copies be made of such items. Provided that on the return

day and for the sole purpose of satisfying himself that the inventory correctly reflects the seized goods, any interested party shall be entitled to inspect the items in the Sheriff/Deputy Sheriff's possession under such terms and conditions as may be imposed by the Court.
5.Applicant is directed to institute an action for infringement of its trademark within ten (10) days if the finalisation of any search conducted in terms of paragraph 1 above, failing which and in the absence of good cause being shown why the proceedings have not been instituted within this duration, the Court shall discharge this Order upon such terms and conditions as it deem fit in its discretion in relation to the return of any seized goods and in relation to the question of costs.
6.The Supervising Attorney shall place a report before the Court on or before the return day, with proof that the report has served on the Applicant's attorney and on the person from whom any goods or articles were seized pursuant to this order or to such person's his duly elected legal representative. The report shall comprise the Supervising Attorney's inventory of seized goods and/or documents and articles as well as an Affidavit setting out the manner in which this order was executed.
7.The terms of this order shall remain in force unless otherwise varied by this Court.
8.Any person intending to oppose or support the application on the return day of this order shall:
a) give due notice to the Applicant at DNM Legal Practice's offices situated at No.2 Westminster Avenue, Avondale West, Harare; and
b) serve on the Respondents a copy of any affidavit which he files with the Registrar of the High Court.
9.Costs to be in the cause."

The Applicant seeks the confirmation of the Provisional Order under the following terms of final relief:

"A) That items inventoried and retained by the Sheriff for Zimbabwe or his deputy or his representative pursuant to this order should be retained by him pending conclusion of the civil action to be instituted by Applicants arising from infringement of the copyright material or conclusion of the criminal complaint launched by the Applicant whichever happens earlier.
B) That costs of this Applicant, including the costs of the supervising attorney shall be determined in the infringement action to be instituted by Applicants."

It was alleged by the Applicant that the first Respondent (hereinafter called "the Respondent") and Chinhoyi University of Technology approached him with a view to procuring the Sadza Cooking machine, otherwise called the Gwatamatic machine. The Applicant is no longer pursuing the matter against Chinhoyi University Technology (the former 2nd Respondent). The appropriate order was made in this respect as will be demonstrated later.

The Applicant claimed that he invented the drawings for the Sadza Cooking machine. The Applicant also maintained that he enjoys copyright for engineering drawings for the Sadza Cooking machine. The Applicant affirmed that he discovered that the Respondent and the former second Respondent (hereinafter called "the Respondents") were now manufacturing the Sadza

Cooking machine. He further maintained that the Respondents are infringing his copyright arising from the engineering drawings. The Applicant averred that there is a need to employ the Anton Piller order in order to arrest the violation of his copyright. According to the Applicant, this will ensure that the evidence is preserved pending the case for infringement, which was to be instituted.

After the granting of the Provisional Order, the Applicant, accompanied by the second Respondent, executed the Provisional Order. It was alleged that the Applicant found no evidence at the former second Respondent's premises. At the Respondent's premises, the Applicant attached the Sadza Cooking machine. Certain parts were extracted from the machine.

The confirmation of the Provisional Order was opposed by the Respondent. The Respondent initially raised the point *in limine* that the Applicant lacks *locus standi*. This point *in limine* was eventually abandoned. The Respondent raised a further point *in limine* that the answering affidavit was improperly before the court, having been filed out of time. By consent, the Applicant and the Respondent reached an agreement that the Respondent may file an additional affidavit in response to the issues raised in the answering affidavit. Pursuant to the concession on this aspect and other issues, I made the following order:

> "1.The application for the withdrawal of the matter against the 2nd Respondent be and is hereby granted.
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> 2.The Applicant shall pay costs for the withdrawal on an ordinary scale.
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> 3.The point *in limine* that the Applicant lacks *locus standi* be and is hereby abandoned by the first Respondent.
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> 4.The Applicant's oral application for condonation for the late filing of answering affidavit be and is hereby granted.
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> 5.The answering affidavit be and is hereby deemed to be properly filed.
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> 6.The 1st Respondent shall file further affidavit by 6 February 2026.
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> 7.The Applicant shall file a further affidavit and supplementary heads, if necessary, by 10 February 2026.
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> 8.The 1st Respondent shall file supplementary heads, if necessary, by 13 February 2026.

9.The matter shall be argued on 17 February 2026 at 10AM.

10.The Applicant shall bear wasted costs occasioned by the postponement of this matter on an ordinary scale."

On the merits, the Respondent argued that the Applicant failed to demonstrate that the drawings are his original works. Mr *Mahere* submitted that the drawings from pp 23 up to 72 bear the date of 2024. He further submitted that the drawings must be deemed to have been authored on this date. Mr. Mahere argued that the Respondent acquired the machine in 2020. On this basis, Mr *Mahere* contended that the Provisional Order cannot be confirmed.

Responding to this, Ms. Chiota argued that the date of 2024 was only raised for the first time during the court proceedings. She submitted that the Applicant will not be able to comment under such circumstances. On this basis, Ms *Chiota* prayed for the disregarding of the evidence given over the bar.

The Respondent further alleged that the Sadza Cooking machines are ubiquitous throughout the country. The Respondent further insisted that it tried to purchase the machine from the Applicant. According to the Respondent, it later purchased the machine from Becaquip Investments (Pvt) Ltd after the Respondent and the Applicant failed to reach an understanding. The Respondent affirmed that it is in the business of tobacco. The Respondent further alleged that it is not in the business of manufacturing the Sadza Cooking machines.

The sole question that arises is whether the court may confirm the Provisional Order.
An owner of Copyright must establish that the works sought to be protected are his or her original works. Reference is made to s 10(1) of the Copyright and Neighbouring Rights Act [*Chapter 26:05]*, which provides that:

"Subject to this Act, the following works, if they are original, shall be eligible for copyright—

(a) literary works;

(b) musical works;

(c) artistic works;

(d) audio-visual works;

(e) sound recordings;

(f) broadcasts;

(g) programme-carrying signals;

(h) published editions."

The remedy for Anton Piller Order for copyright is established in terms of s 57 of the Copyright and Neighbouring Rights Act, which provides that:

> "(1) If a person who has instituted or intends instituting (sic) proceedings for infringement of copyright satisfies the Tribunal or a court that, *prima facie*—
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> (a) he has a cause of action against another person which he intends to pursue; and
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> (b) the other person has in his possession documents, infringing copies or other things of whatsoever nature which constitute evidence of great importance in substantiation of that cause of action; and
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> (c) there is a real and well-founded apprehension that the documents, infringing copies or other things may be hidden, destroyed or rendered inaccessible before discovery can be made in the usual way;
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> the Tribunal or court, as the case may be, may make such order as it considers necessary or appropriate to secure the preservation of the documents, copies or things as evidence.
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> (2) An order in terms of subsection (1) may be granted without notice to the person who is allegedly in possession of the documents, infringing copies or other things to which the order relates, and the Tribunal or court may sit *in camera* for the purpose of hearing an application for such an order:
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> Provided that the Tribunal or Court shall not grant an order without such notice unless it is satisfied that there is a real possibility that the documents, copies or things will be hidden, destroyed or rendered inaccessible if notice is given.
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> (3) An order in terms of subsection (1) may be granted on such conditions, including the giving of security by the applicant, as the Tribunal or court may fix.
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> (4) This section shall not be taken to limit any power a court may have under its ordinary jurisdiction to grant orders such as are referred to in this section."

It is apparent in our jurisdiction that the court must be satisfied that the Applicant seeking confirmation of the Provisional Order must establish a clear right. Ms. Chiota submitted that the Applicant has managed to establish a clear right. However, Ms. Chiota was not able to establish the exact date upon which the engineering drawings were authored. At one time, she submitted that the drawings were authored in 2002. No evidence was tendered in this regard.

The Applicant failed to prove the date of creation of his drawings. The Applicant's failure to specify the date for the invention of the drawings throughout the pleadings, written submissions and oral submissions cannot be ignored by this court. Mentioning the date for the generation of his drawings is likely to expose the Applicant against his competitors, in my view. Thus, the withholding of such information is likely to be a calculated strategy against his competitors.

The Applicant's failure to disclose the date upon which the drawings were created, on its own, is a dispositive factor of the present application. The date for the authorship of the drawings is a crucial component for the Applicant's cause of action. Without this information, the Applicant fails to satisfy the basic requirement for Anton Piller Order established in Section 57(1)(a) of the Copyright and Neighbouring Rights Act; more particularly in that he has failed to establish a cause of action against the Respondent.

The Applicant's counsel, Ms. *Chiota,* failed to explain the dates on the drawings from pp 23-72. It is apparent that from pp 23-72, the date of 19 November 2024 captured as "19/11/2024" is consistently appearing on all such pages. Surely that date requires an explanation. In my view, this is likely to be the date upon which such drawings were authored in the absence of a further explanation. The drawings on such pages were authored by the Applicant. The Applicant never disowned such drawings. The date was not erroneously inserted in my view. For this reason, I am unable to confirm the Provisional Order. The Applicant ought to have furnished the court with sufficient evidence for the court to confirm the Provisional Order

The relief for Anton Piller Order is a drastic remedy which can only be granted in exceptional circumstances. In the headnote of *Cooper* v *Leslie and Ors 2000* (1) ZLR 14(H), the following appears;

> "1,An *Anton Piller* order is a modern legal remedy devised to cater for modern problems in the prosecution of civil actions. The procedure allows a party to make an *ex parte* application, without notice to the other side, for the attachment and removal of documents or other evidence. It has its genesis in English Law. Originally, its use was confined to cases involving intellectual property, but has since been extended to cover other civil cases. It has, after some initial reluctance and some contradictory judgments, been accepted by the courts of South Africa and should be accepted as part of the law of Zimbabwe.
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> An applicant for an *Anton Piller* order must *prima facie* establish:

> 1. that he has a cause of action against the respondent which he intends to pursue;
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> 2. that the respondent has in his possession specific and specified documents or things which constitute vital evidence in substantiation of the applicant's cause of action, but in respect of which the applicant cannot claim a real or personal right; and
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> 3. that there is a real and well-founded apprehension that this evidence may be hidden or destroyed or in some manner spirited away by the time the case comes to trial or to the stage of discovery.
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> The remedy may, if used indiscriminately, become an instrument of oppression, so the court must proceed with caution and impose safeguards to protect the rights of the party against whom the relief is sought. In exercising its discretion, the court must pay regard to the cogency of the *prima facie* case established with reference to the three items listed above; the potential harm that will be suffered by the respondent if the order is granted, as compared to the potential harm to the applicant if it is not; and whether the terms of the order sought are no more onerous than is necessary to protect the interests of the applicant."

In my view, the confirmation of the Provisional Order must be confirmed in extraordinary circumstances. Confirming the Provisional Order in the absence of critical evidence is not just in the circumstances.

The Applicant must bear costs on an attorney and client scale for unnecessarily dragging people to court without evidence. The Applicant has a responsibility to put his house in order before approaching the court. The Applicant was challenged to prove originality in his works, but ignored this call. In my view, the present application is a frivolous and vexatious application meant to harass the Respondent. The Applicant ought to have proved that the claimed drawings are his original works. The date for the works is at the centre of the dispute. Upon his failure to prove the date, the Applicant must be punished with an appropriate order of costs. This will ensure that the relief of the Anton Piller Order is not abused by persons approaching the court. In the circumstances, the following order is made:

a) The Provisional Order be and is hereby discharged.

b) The Applicant and the second respondent be and are hereby ordered to return to the first Respondent all seized items.

c) The Applicant shall bear costs of suit on attorney and client scale.

DEME J:……...

DNM Attorneys, applicant's legal practitioners.
Gill, Godlonton and Gerrans, first respondent's legal practitioners.